where the latitude 32 deg. 40 min. north of the equator intersects the same, running thence along the same parallel of latitude, a due east course, to the Tombigbee river, thence up the said Tombigbee river, to where the latitude of 32 deg. 43 min. 52 sec. intersects the same, thence along the same parallel of latitude, a due west course, to the Mississippi; thence down the said river, to the place of beginning; the said described tract containing 500,000 acres, and is the same which was conveyed by Nathaniel Prime to Oliver Phelps, by deed, dated the 27th of February 1796, and of which the said Phelps conveyed four-fifths to Benjamin Hichborn and the said Peck, by deed, dated the 8th of December 1800; the said tract of 500,000 acres being part of a tract which James Greenleaf conveyed to the said N. Prime, by deed, dated the 23d of September 1795, and is parcel of that tract which James Gunn, Matthew McAllister, George Walker, Zachariah Cox, Jacob Walburger, William Longstreet and Wade Hampton, by deed, dated 22d of August 1795, conveyed to the said James Greenleaf; the same being part of that tract which was granted by letters-patent under the great seal of the state of Georgia, and the signature of George Matthews, Esq., governor of that state, dated the 13th of January 1795, to the said James Gunn and others, under the name of James Gunn, Mathew McAllister and George *Walker and their associates, and their heirs and assigns, in fee-simple, [*88
under the name of the Georgia Company; which patent was issued by virtue of an act of the legislature of Georgia, passed the 7th of January 1795, entitled "an act supplementary to an act for appropriating part of the unlocated territory of this state, for the payment of the late state troops, and for other purposes therein mentioned, and declaring the right of this state to the unappropriated territory thereof, for the protection and support of the frontiers of this state, and for other purposes." That Peck, in his deed to Fletcher, covenanted "that the state of Georgia aforesaid was, at the time of the passing of the act of the legislature thereof (entitled as aforesaid), legally seised in fee of the soil thereof, subject only to the extinguishment of part of the Indian title thereon. And that the legislature of the said state, at the time of passing the act of sale aforesaid, had good right to sell and dispose of the same, in manner pointed out by the said act. And that the governor of the said state had lawful authority to issue his grant aforesaid, by virtue of the said act. And further, that all the title which the said state of Georgia ever had in the afore-granted premises had been legally conveyed to the said John Peck, by force of the conveyances aforesaid. And further, that the title to the premises so conveyed by the state of Georgia, and finally vested in the said Peck, had been in no way constitutionally or legally impaired by virtue of any subsequent act of any subsequent legislature of the said state of Georgia." The breach assigned in the first count was, that at the time the said act of 7th of January 1795, was passed, "the said legislature had no authority to sell and dispose of the tenements aforesaid, or of any part thereof, in the manner pointed out in the said act."

The 2d count, after stating the covenants in the deed as stated in the first count, averred, that at Augusta, in the said state of Georgia, on the 7th day of January 1795, the said James Gunn, Mathew McAllister *and [*89
George Walker promised and assured divers members of the legislature of the said state, then duly and legally sitting in general assembly of